

June 5, 2009



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety Administration**

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

DOT-SP 9157
(THIRTEENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain hazardous materials in a non-DOT specification multi-unit tank car tank. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.314(c) Note 7, in that a non-DOT specification multi-unit tank car tank is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Matheson Tri-Gas dated February 4, 2009, submitted in accordance with § 107.105 and public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/Division	Identification Number	Packing Group
Butane	2.1	UN1011	N/A
Isobutane	2.1	UN1969	N/A
Propane	2.1	UN1978	N/A
Propylene	2.1	UN1077	N/A
Butylene	2.1	UN1012	N/A
Butadienes, stabilized	2.1	UN1010	N/A
Dimethyl ether	2.1	UN1033	N/A
Hydrogen sulfide	2.3	UN1053	N/A
Pentanes	3	UN1265	I, II

7. SAFETY CONTROL MEASURES: Prescribed packaging is a non-DOT specification multi-unit tank car tank manufactured from ASTM A-516 Grade 70 normalized steel designed and constructed in accordance with DOT Specification 110A1000-W. Tanks must be as shown on Columbian Boiler Company drawing number 9283-Q dated September 2, 1983.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.
- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

- c. Drivers must have been instructed as to necessary safeguards and proper procedures in the event of unusual delay, fire, or accident.
 - d. For transportation by motor vehicle, each multi-unit tank car tank must be carried in conformance with the requirements of § 177.834(m).
 - e. Each multi-unit tank car tank must be reinspected and retested in accordance with the requirements of § 173.31 as prescribed for DOT Specification 110A1000-W multi-unit tank car tanks.
 - f. Each multi-unit tank car tank must be plainly marked on two sides near the middle, in letters and numerals at least two inches high on a contrasting background, "DOT-SP 9157" and the name of the certain hazardous materials being transported.
 - g. "DOT-SP 9157" must be stamped on the chime ring in lieu of the DOT specification number as specified in § 179.300-18.
 - h. Multi-unit tank car tanks must be adequately stowed and secured within each freight container for shipment by cargo vessel.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel and motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Theodore L. Willke
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: sln